

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Corwin	Team: Squad #10	CCRB Case #: 201909693	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/03/2019 6:45 PM	Location of Incident: Scholes Street and Humboldt Street	18 Mo. SOL 6/20/2021	Precinct: 90
Date/Time CV Reported Thu, 11/07/2019 12:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/07/2019 12:12 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Gregg Minardi	00608	940475	090 PCT
2. POF Jessica Schrell	26482	953384	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Philippe Vukosa	22128	953542	090 PCT
2. POM Michael Crichlow	20395	960083	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Jessica Schrell	Discourtesy: Police Officer Jessica Schrell spoke discourteously to § 87(2)(b)	
B . POF Jessica Schrell	Abuse: Police Officer Jessica Schrell frisked § 87(2)(b)	
C . SGT Gregg Minardi	Abuse: Sergeant Gregg Minardi frisked § 87(2)(b)	
D . POF Jessica Schrell	Abuse: Police Officer Jessica Schrell searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	

Case Summary

On November 7, 2019, § 87(2)(b) filed the following complaint in a phone call with the CCRB.

At approximately 6:45 p.m. on May 3, 2019, § 87(2)(b) was in his car with § 87(2)(b) in the vicinity of Scholes Street and Humboldt Street when they were pulled over by Sergeant Gregg Minardi and Police Officer Jessica Schrell, both of the 90th Precinct. PO Schrell spoke with § 87(2)(b) through the driver's window and when § 87(2)(b) mentioned that he had a pimple, PO Schrell said, "Put some fucking toothpaste on it," (**Allegation A: Discourtesy: Word:** § 87(2)(g)). She and Sgt. Minardi instructed § 87(2)(b) and § 87(2)(b) to get out of the car and PO Schrell frisked § 87(2)(b) while Sgt. Minardi frisked § 87(2)(b) (**Allegation B and Allegation C: Abuse of Authority: Frisk:** § 87(2)(g)). PO Schrell then searched § 87(2)(b)'s car and found a controlled substance (**Allegation D: Abuse of Authority: Vehicle Search:** § 87(2)(g)). § 87(2)(b) and § 87(2)(b) were arrested. § 87(2)(b) was charged with § 87(2)(b) § 87(2)(a) 160.50.

(**Board Review 01**) § 87(2)(b) was released and the arrest was sealed.

The CCRB obtained and summarized Body-Worn camera footage from PO Schrell (**Board Review 02 and 03**), Sgt. Minardi (**Board Review 04 and 05**), PO Vukosa (**Board Review 06 and 07**), and PO Crichlow (**Board Review 08 and 09**).

Findings and Recommendations

Allegation A: Discourtesy: Police Officer Jessica Schrell spoke discourteously to § 87(2)(b).

§ 87(2)(b) provided a sworn statement at the CCRB on November 20, 2019 (**Board Review 10**). PO Schrell provided a statement via remote interview on August 14, 2020 (**Board Review 11**). The investigation was unable to obtain a statement from § 87(2)(b).

It was undisputed that PO Schrell said, "Put some fucking toothpaste on it," to § 87(2)(b) after § 87(2)(b) mentioned he had a pimple on his face, which can be seen at 02:40 in PO Schrell's BWC footage (**Board Review 02**).

In her statement, PO Schrell initially had no recollection of saying, "Put some fucking toothpaste on it," to § 87(2)(b). After being shown her BWC, she stated that she did not mean to curse at § 87(2)(b) in a derogatory way, but that she used profanity in the course of her speaking to him. When asked if there was any law enforcement purpose in saying, "put some fucking toothpaste on it," PO Schrell stated there was not.

Patrol Guide Procedure 200-02 states that the department is committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others (**Board Review 12**).

§ 87(2)(g)

Allegation B: Abuse of Authority: Police Officer Jessica Schrell frisked § 87(2)(b)
Allegation C: Abuse of Authority: Police Officer Gregg Minardi frisked § 87(2)(b)
Allegation D: Abuse of Authority: Police Officer Jessica Schrell searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated that after PO Schrell told him to get out of the car, she patted down his legs, hips, waist, and groin area. PO Schrell and Sgt. Minardi directed § 87(2)(b) and § 87(2)(b) to the back of the car and told them to face away from the car. § 87(2)(b) glanced behind him towards the car and saw PO Schrell and Sgt. Minardi inside of his car. § 87(2)(b) said that neither he nor § 87(2)(b) had marijuana on them or in the car and they had never smoked marijuana in the car. He did not smell any marijuana in the area.

PO Schrell did not have an independent recollection of the incident. She did not recall frisking § 87(2)(b) or searching his car. After being shown her BWC, she stated she likely asked § 87(2)(b) to get out of the car because she smelled the odor of marijuana and frisked him for her safety. She did not recall why she searched the car.

At 03:00 in PO Schrell's BWC (**Board Review 02**), PO Schrell asks § 87(2)(b) when the last time he smoked marijuana was. § 87(2)(b) says he does not smoke marijuana and PO Schrell opens his door and tells him to get out of the car, which he does. PO Schrell asks if anyone else was smoking weed in the car and then pats down § 87(2)(b)'s pants and waist area. § 87(2)(b) says he was in a house with people smoking weed. PO Schrell asks § 87(2)(b) if the weed smell sticks on his clothes and he says, "You already know that." Between 04:20 and 09:30 of her BWC footage, PO Schrell searches the inside of § 87(2)(b)'s car.

Additionally, at 03:29 in Sgt. Minardi's BWC (**Board Review 04**), PO Schrell can be heard asking § 87(2)(b) "Anybody else smoking weed in the car?" At this point, § 87(2)(b) turns to Sgt. Minardi and says, "I'll be honest with you, I got weed on me." Sgt. Minardi tells § 87(2)(b) to get out of the car and at 04:05, Sgt. Minardi pats § 87(2)(b)'s pants down.

§ 87(2)(g)
[REDACTED]

The scent of marijuana emanating from a defendant's vehicle provides officers with probable cause to search the vehicle and its occupants. People v. Chestnut, 43 A.D. 2d 260 (1974) (**Board Review 13**).

§ 87(2)(g)
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been named as a victim in four allegations (**Board Review 14**)
 - § 87(2)(b)

- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 15**)
- PO Schrell has been a member of service for eight years and has been a subject in five complaints and 13 allegations, none of which were substantiated.
- Sgt. Minardi has been a member of service for 14 years and has been a subject in 16 complaints and 53 allegations, of which six have been substantiated
 - 201806785 involved a substantiated allegation of a frisk against Sgt. Minardi. The Board recommended formalized training and the NYPD imposed formalized training.
 - 201900335 involved two substantiated allegations of failure to provide RTKA card against Sgt. Minardi. The Board recommended formalized training and the NYPD has yet to impose discipline.
 - 201901352 involved a substantiated allegation of failure to provide RTKA card against Sgt. Minardi. The Board recommended command level instructions and the NYPD has yet to impose discipline.
 - 201906121 involved substantiated allegations of failure to provide RTKA card and threat of arrest against Sgt. Minardi. The Board recommended command level instructions and the NYPD has yet to impose discipline.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A request for any Notice of Claim was sent to the New York City Office of the Comptroller. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: <u>Matthew Corwin</u>	Inv. Corwin	08/14/2020
Signature	Print Title & Name	Date

Squad Leader: <u>Eric Rigie</u>	IM Eric Rigie	8/17/2020
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date